

Court No. - 32

Case :- WRIT - C No. - 16602 of 2022

Petitioner :- Hasim Ikbali Faridi

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Ramesh Chandra Tiwari

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Vikram D. Chauhan, J.

As prayed on behalf of Sri Ramesh Chandra Tiwari learned counsel for the petitioner, put up this matter on 05.07.2022 as fresh.

Order Date :- 20.6.2022

Himanshu

Court No. - 3

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Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Ramesh Chandra Tiwari

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

1. Heard learned counsel for the petitioner, learned Standing Counsel for the State-respondents, and Shri Udit Chandra, learned counsel for the respondent nos.2 and 3.

2. This writ petition has been filed praying for the following reliefs :

"i) To ISSUE a writ, order or direction in nature of certiorari quashing the recovery citation dated 14.9.2021 for an amount of Rs.3,26,251/- on account of alleged theft of electricity passed by respondent no.3, Executive Engineer Electricity Distribution Division-Machhlishahar, Purvanchal Vidyut Vitaran Nigam Ltd. Jaunpur (filed as Annexure No.3 to this writ petition).

ii) TO ISSUE a writ, order or direction in nature of mandamus commanding and directing the respondent no.3 to decide the representation dated 23/24.5.2022 of the petitioner pending before the respondent no.3 (filed as Annexure No.4 to this writ petition)."

3. Learned counsel for the respondent no.3/Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

4. In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed of** giving liberty to the petitioner to submit his objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent no.3 within four weeks from today alongwith a certified copy of this order. In the event, such an objection is submitted within the stipulated period, it shall be

decided by the respondent no.3 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

5. For a period of eight weeks or till the disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand/notice.

Order Date :- 5.7.2022

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